

AXCELUS FINANCIAL LIFE INSURANCE COMPANY

FINRA Rule 5131 Questionnaire – Entity Policy Owner

Policy Owner Name: _____

Policy Number: _____

Respondent's Name and Title: _____

Instructions:

- 1 Please review the criteria in “Part A” below and check the box if any of the criteria apply.
- 2 If none of the criteria apply, proceed to “Part B” and check the box in “Part B.” Please then sign, date, and return the form to Axcelus Financial.
- 3 If you checked the box in Part A, you may still be able to participate in New Issues. Please review the categories under “Item II” on pages 3-4 and initial any that apply. Please then sign, date, and return the form to Axcelus Financial.

Item I. Determination of Covered Investor Status:

Part A.

- ☐ The Policy Owner is:
- i. an individual who is an executive officer or director of a Public Company (as defined on page 5).
 - ii. an individual who is an executive officer or director of a Covered Non-Public Company (as defined on page 5).
 - iii. a person Materially Supported (as defined on page 5) by an executive officer or director of a Public Company or a Covered Non-Public Company.
 - iv. an entity (e.g., a corporation, partnership, limited liability company, trust or other entity) in which any person or persons listed in any of items (i) through (iii) above has a beneficial interest¹ (each, a “Covered Investor”).

¹ The term “beneficial interest” means any economic interest such as the right to share in gains or losses. The receipt of a management or performance based fee for operating a collective investment account, or other fee for acting in a fiduciary capacity, is not considered a beneficial interest in the account; however, if such fee is subsequently invested into the account (as a deferred fee arrangement or otherwise), it is considered a beneficial interest in that account.

If Part A is checked, please indicate the company (or companies) on whose behalf such executive officers or directors serve.

Name of Company(ies):

Reminder: if any of the criteria above apply and you have therefore checked the box in Part A, you may still be able to participate in New Issues. Please proceed to “Item II” on the next page, review the categories under Item II, and check any that apply.

If none of the criteria in Part A apply, check Part B below, sign page 4, and return the form to Axcelus Financial.

Part B.

☐

The categories in Part A above do not apply and the Policy Owner is eligible to participate in New Issues in accordance with FINRA Rule 5131. (Check this box also if you are an entity that does not permit Covered Investors to participate to any extent in New Issues.)

If you have initialed Part B above, please proceed to page 4, sign, and return the form to Axcelus Financial.

Item II. Determination Of Exempted Entity Status (for Investors who Checked Part A):

If the Policy Owner is a Covered Investor under Part A above, the Policy Owner may still be able to participate in New Issues if it indicates below that it is an Exempted Entity.

The Policy Owner is (please check all appropriate boxes):

☐ (a) a corporation, partnership, limited liability company, trust or any other entity (including a private investment vehicle such as a hedge fund or an offshore fund, or a broker-dealer organized as an investment partnership) and

- (1) the beneficial interests of Covered Investors of any Public Company or Covered Non-Public Company do not exceed in the aggregate (as to each Public Company or Covered Non-Public Company) 25% of such entity; or
- (2) such entity limits participation by Covered Investors of any one Public Company or Covered Non-Public Company in aggregate (as to each Public Company or Covered Non-Public Company) to not more than 25% of the profits and losses of New Issues;

If this item is checked, please indicate the company on whose behalf such executive officer or director serves. Please also indicate the percentage share of profits or losses attributable to New Issues to be received by all Covered Investors:

Name of company(ies): _____

Percentage share of New Issues: _____ %
_____ %
_____ %
_____ %

☐ (b) a publicly-traded entity (other than a broker-dealer or an affiliate of a broker-dealer, where such broker-dealer is authorized to engage in the public offering of New Issues either as a selling group member or underwriter) that is listed on a national securities exchange or traded on the NASDAQ Global Market or is a foreign issuer whose securities meet the quantitative designation criteria for listing on a national securities exchange or trading on the NASDAQ Global Market.

☐ (c) an investment company registered under the U.S. Investment Company Act of 1940, as amended.

☐ (d) an investment company organized under the laws of a foreign jurisdiction, provided that:

- (1) the investment company is listed on a foreign exchange for sale to the public or authorized for sale to the public by a foreign regulatory authority; and

- (2) no person owning more than 5% of the shares of the investment company is a Covered Investor.

☐ (e) (1) an employee benefits plan under the U.S. Employee Retirement Income Security Act of 1974, as amended, that is qualified under Section 401(a) of the U.S. Internal Revenue Code of 1986, as amended (the "Code") and such plan is not sponsored solely by a broker-dealer, (2) a state or municipal government benefits plan that is subject to state and/or municipal regulation or (3) a church plan under Section 414(e) of the Code.

☐ (f) a tax exempt charitable organization under Section 501(c)(3) of the Code.

☐ (g) a common trust fund or similar fund as described in Section 3(a)(12)(A)(iii) of the U.S. Securities Exchange Act of 1934, as amended, provided that the fund:

- (1) has investments from 1,000 or more accounts, and
- (2) does not limit beneficial interests (as defined above) in the fund principally to trust accounts of Covered Investors.

☐ (h) an insurance company general, separate or investment account, provided that:

- (1) the account is funded by premiums from 1,000 or more policyholders, or, if a general account, the insurance company has 1,000 or more policyholders, and
- (2) the insurance company does not limit the policyholders whose premiums are used to fund the account principally to Covered Investors, or, if a general account, the insurance company does not limit its policyholders principally to Covered Investors.

The Policy Owner acknowledges that in making representations to its underlying funds/managers, Axcelus Financial will be relying upon the information provided by the Policy Owner in this Questionnaire and represents and warrants that such information may be relied upon by Axcelus Financial, its advisers, and any entities or investment managers with which Axcelus Financial invests in complying with FINRA Rule 5131.

The Policy Owner agrees to notify Axcelus Financial promptly when any response or representation made herein is no longer accurate.

Further, the person signing this Questionnaire (i) is authorized to represent the Policy Owner and (ii) has the full power and authority under the Policy Owner's governing instruments, if any, to do so.

Respondent: _____
Authorized Signature

Printed Name of Signatory: _____

Title: _____

Date: _____

DEFINITIONS

Covered Non-Public Company	Any non-public company with: (i) income of at least \$1 million in the last fiscal year or in two of the last three fiscal years and shareholders' equity of at least \$15 million; or (ii) shareholders' equity of at least \$30 million and a two-year operating history; or (iii) total assets and total revenue of at least \$75 million in the latest fiscal year or in two of the last three fiscal years.
Material Support	Directly or indirectly providing more than 25% of a person's income in the prior calendar year. Persons living in the same household are deemed to be providing each other with material support.
New Issue Securities	Any initial public offering of equity securities, foreign or domestic, except those exempt under FINRA Rule 5130.
Public Company	Any company that is registered under Section 12 of the Securities and Exchange Act of 1934, as amended (the "Exchange Act"), or any company that files periodic reports pursuant to Section 15(d) of the Exchange Act.